



CHAPTER lxxxiv.

An Act to dissolve University College Reading and to transfer all the property and liabilities of that College to the University of Reading and for other purposes. [4th August 1926.] A.D. 1926.

WHEREAS a college (in this Act referred to as "the College") was established in the year one thousand eight hundred and ninety-two under the name of "University Extension College in conjunction with the Schools of Science and Art Reading" afterwards abbreviated to "University Extension College Reading" and was incorporated in the year one thousand eight hundred and ninety-six under the Companies Acts 1862 to 1890 by a memorandum and articles of association under the name of "University Extension College Reading" which was afterwards altered first to "Reading College" and subsequently to "University College Reading" for various objects including the following (that is to say):—

"(a) To maintain a college for day and evening students male and female and to carry on work at Reading or elsewhere in furtherance of the aims of the College as an institution for the promotion of general civic and technical education and research;

"(b) To establish organize and maintain classes and lectures in Reading and in other towns and places in the county of Berks and other counties for the purpose of promoting education and research and in particular to provide instruction in natural science agriculture fine

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and applied art engineering handicraft languages music literature history commercial and other useful subjects to provide for the training of teachers in secondary elementary and other schools and to provide instruction in such other branches of education as shall from time to time be directed by the managing body or bodies of the association ”;

and the College is under the management of Governors and a Council appointed by or in pursuance of the said articles of association :

And whereas the College has made provision for teaching of university standard in faculties of letters science and agriculture and horticulture and has also maintained departments or schools of fine art music and domestic subjects :

And whereas on the petition of the College His Majesty on the seventeenth day of March one thousand nine hundred and twenty-six granted a Charter constituting in the county borough of Reading a University (in this Act referred to as “ the University ”) by the name and style of “ The University of Reading ” with faculties of letters of science and of agriculture and horticulture and such other faculties as may from time to time be constituted by the University and with power to grant degrees and to do all such other acts and things as may be requisite in order to further the objects of the University as a place of education and of learning :

And whereas the Governors and Council of the College are desirous and it is expedient that the College should be merged in the University and that all the property and liabilities of the College should be transferred to and vested in the University :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the University of Reading Act 1926.

2.—(1) As from the passing of this Act the College shall be by virtue of this Act dissolved and cease to exist and the memorandum and articles of association of the College shall as to any prospective operation thereof be wholly void and all property real and personal of every description (including things in action) and all rights and privileges of the College which immediately before that date belonged to or were vested in the College shall subject to the provisions of this Act be by virtue of this Act without any conveyance transfer or other instrument transferred to and vested in the University for all the estate and interest therein of the College and shall be applied to the objects and purposes for which the University is incorporated.

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Dissolution
of College
and transfer
of property
to Univer-
sity.

(2) Any property which by any deed will or other instrument is allocated to any specific foundation or object of the College shall after the transfer be held upon trust for and applied by the University to the same specific foundation or object of the University as that for which such property was held in trust for and applied by the College previously to the transfer :

Provided that any such foundation or object may from time to time be varied or added to by deed under the seal of the University which shall have been approved at a meeting of the court of the University by a majority of two-thirds of such members of the said court as may be present and vote at such meeting and confirmed at a subsequent meeting of the said court holden not less than one month and not more than six months after such first-mentioned meeting by a majority of two-thirds of such members of the said court as may be present and vote at such subsequent meeting but so that the funds and investments for the time being allocated to each specific foundation or object shall remain allocated for and be distinguished as allocated to such specific foundation or object :

Provided also that any such deed shall not be of any validity until the same shall have been submitted to and approved by the Privy Council and a certificate of their approval thereof signed by the clerk of the Privy Council shall be endorsed on such deed.

(3) Any property held by the College upon or subject to any trust or trusts (not being a trust or trusts relating

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Transfer of liabilities.

3. On the passing of this Act all debts and liabilities of the College shall by virtue of this Act be transferred and attached to the University and shall thereafter be discharged and satisfied by the University.

Saving for agreements deeds actions &c.

4. All agreements awards contracts deeds and other instruments and all actions and proceedings and causes of action or proceedings which immediately before the passing of this Act were existing or pending in favour of or against the College shall continue and may be carried into effect enforced and prosecuted by or in favour of or against the University to the same extent and in like manner as if the University instead of the College had been party to or interested in the same respectively.

Saving for existing officers of College.

5. All professors and other members of and persons attached to or associated with the teaching staff of the College and all salaried or paid officers and servants of the College shall hold as nearly as practicable the same offices and places in the University as they held in the College immediately before the passing of this Act and upon the same terms and conditions unless and until the Council of the University shall otherwise decide.

Transfer of powers to nominate members of educational authorities and certain governing bodies.

6. Any power or right of the College to appoint or nominate a member of any educational authority or of the governing body of any educational charitable or other institution shall on the passing of this Act be transferred to and may be exercised by the Council of the University.

Extension of privileges of graduates.

7. Wherever any office is or shall be open to graduates of the Universities of Oxford Cambridge and London the Victoria University of Manchester the University of Liverpool the University of Leeds and the University of Sheffield or wherever any privilege or exemption has been or shall be given by any Act of Parliament or regulation of any public authority to graduates of the Universities of Oxford Cambridge and London the Victoria University of Manchester the University of Liverpool

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the University of Leeds and the University of Sheffield graduates of the University having the degree which would be a qualification if it had been granted by the University of Oxford Cambridge or London the Victoria University of Manchester the University of Liverpool the University of Leeds or the University of Sheffield may become candidates for and may hold any such office and shall be entitled to all such privileges and exemptions as fully as graduates of any of the last mentioned universities.

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8. The University shall be deemed to have been included among the universities mentioned in section 7 of the Mortmain and Charitable Uses Act 1888 and that Act shall be read and have effect accordingly.

Application of section 7 of Mortmain &c. Act 1888.

9. Any will deed or other document whether made or executed before or after the passing of this Act (including any will made before the passing of this Act by a testator living at the date of such passing) which contains any bequest gift or trust in favour of the College shall on and after the passing of this Act be read and have effect as if the University were therein named instead of the College.

Construction of bequests in favour of College.

10. The Charitable Trusts Acts 1853 to 1925 shall not extend to property held for the general purposes of the University or of any college or hall therein.

As to Charitable Trusts Acts.

11. The costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act shall be defrayed by the University out of income or out of the capital of the property by this Act transferred to the University or if the Council of the University think fit out of money to be raised by sale or mortgage of some part of the said property.

Costs of Act.

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